

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLUMBIA**

JOYCE BEATTY,

Plaintiff,

v.

DONALD J. TRUMP, *et al.*,

Defendants.

No. 25 Civ. 4480 (CRC)

MOTION FOR EMERGENCY HEARING

Plaintiff requests an emergency hearing regarding Defendants’ unlawful closure of the Kennedy Center.

Following President Trump’s announcement on Truth Social that the Kennedy Center would close immediately, *see* ECF No. 78, Plaintiff has been monitoring the situation at the Center. Last night, Plaintiff received reports that an announcement had been made over the loudspeakers at the Kennedy Center that it had been closed. Plaintiff’s undersigned counsel contacted counsel for Defendants. Counsel for Defendants Brantley Myers responded to Plaintiff’s counsel that “[i]t is our understanding that someone improperly triggered the fire alarm and the loudspeaker announcement followed accordingly. The alarm has since been turned off. We do not have any further information at this time, but the Center is investigating further.” Based on that representation, Plaintiff understood from Defendants that any announcements regarding closure were in error.

On the morning of September 16, 2026, a staff member who works for a law firm representing Plaintiff went to the Kennedy Center. *See* Decl. of Bridget Kennedy-Bailey, Ex. A. According to its website, the “current hours of public access” at the Kennedy Center “are Monday-

Sunday, 10 a.m.–11 p.m.”¹ At approximately 10:15 am, the staff member sought to enter the Kennedy Center’s main building. She was prevented from doing so and was informed by several security staff members that the building is currently closed to the public.

In addition, the staff member was informed that construction is beginning on the interior of the building and that the public is completely barred from accessing the facility for “safety reasons.” To be sure, the Court’s order does not prevent Defendants from undertaking renovations and repairs without shutting down. But at this time, the nature of the construction activities and any potential demolition are unclear. Given the unexplained and unlawful closure, it is possible Defendants intend to undertake immediate steps in order to make public access practically impossible for the foreseeable future, including by demolishing public avenues of access to the building, and thereby evade the Court’s order by fait accompli.

The Kennedy Center’s spokesperson Roma Daravi has confirmed the closure, stating on social media that “[c]ompounding systemic infrastructure failures from decades of neglect have left a crumbling building and safety concerns require an immediate closure of [the Kennedy Center] main building.”²

This morning, undersigned counsel contacted counsel for Defendants by email and by phone and requested that they respond by 12:00 pm today. At 11:36 am, Mr. Myers responded by email stating “[w]e will respond with an explanation as soon as we can.” In response, the undersigned counsel requested that counsel for Defendants commit to responding by 1 pm today. As of the time of this filing, counsel for Defendants have not responded.

¹ See The Kennedy Center, *Visit the Kennedy Center!*, <https://www.kennedy-center.org/reach/the-reach-is-open/>.

² See Roma Daravi (@romadaravi), X (Sep. 16, 2026, at 11:04 AM) <https://x.com/romadaravi/status/2100239282367615386?s=46>.

This Court’s order enjoined the Board from effectuating its shutdown resolutions “until the Board approves any closure consistent with the Court’s Memorandum Opinion, *and* the Court issues a further Order dissolving or modifying this preliminary injunction.” ECF No. 48 at 1 (emphasis added). Were there any doubt, this Court made clear at yesterday’s hearing that if Defendants intended to close the Center, they could and must move to lift the preliminary injunction. The Board has voted to close the Center. But the Court has not dissolved or modified its order. It seems Defendants may be violating the “clear and unambiguous order of the Court.” *Potter v. District of Columbia*, 126 F.4th 720, 723 (D.C. Cir. 2025).

Accordingly, Plaintiff respectfully requests that the Court set an emergency hearing, either remotely or in person, to address this apparent violation of the Court’s order. Plaintiff also respectfully requests that a high-level decision-maker at the Kennedy Center be required to attend the hearing.

Dated: September 16, 2026

/s/ Nathaniel A.G. Zelinsky

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